

5. 9:00 AM CASE NUMBER: C23-00639

CASE NAME: 4740 APPIAN WAY HOMEOWNERS ASSOCIATION VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: CHANG, HOUY CHYUN

TENTATIVE RULING:

This matter is off calendar and this hearing is vacated. Demurring party, Defendant Huoy Chyun Chang, was dismissed from this case without prejudice on December 12, 2025. No appearance is required at the hearing on February 18, 2026.

6. 9:00 AM CASE NUMBER: C23-02578

CASE NAME: DAVID HAMMOND VS. DOES 1 THROUGH 100, INCLUSIVE

*HEARING ON MOTION IN RE: FOR SANCTIONS (PER EX PARTE ORDER GRANTED/FILED 8/25/25)

FILED BY: HAMMOND, DAVID

TENTATIVE RULING:

Summary

Plaintiff David Hammon's Motion for Sanctions for fees and costs in the amount of \$59,391.84 and costs in the amount of \$223.84 against Defendant Tony Geisler ("Defendant" or "Geisler") and his counsel, Dominic Signorotti, is **denied** without prejudice.

Background

On September 19, 2025, Plaintiff David Hammon filed a Motion for Sanctions pursuant to Cal. Code of Civ. Proc § 128.5 against Defendant Tony Geisler or his counsel, Dominic Signorotti, or both of them jointly, in the total amount of \$59,391.84, reflecting the total of the attorney fees (\$59,168.00) and costs (\$223.84) incurred by Plaintiff thus far as a result of Geisler's and Signorotti's sanctionable conduct. The motion is supported by a Memorandum of Points and Authorities, Notice, and a Declarations prepared by Counsel Kevin R. Brodehl and Daniel J. Zarchy. The motion, in essence, claims that Defendant Geisler had engaged in bad faith conduct and filed a legally frivolous answer.

On February 3, 2026, in an opposition filed by Defendant Geisler through Counsel Signorotti, Geisler asserts that Defendant's actions and intervention did not amount to bad faith, but in recognition of a disputed issues of fact that related to whether the public easement and unperfected dedication for hiking and riding purposes could be legally interpreted as encompassing bicycle riding or whether bicycle riding is a permissible change in the use of the easement because that use was within the contemplation of the offeror when the offer of dedication and easement were initially conveyed. (Citing to the ruling denying the Intervenor's Motion for Summary Adjudication in the 2017 Action, and the formal Order filed February 24, 2022 adopting that tentative ruling.) Defendant further claims that Hammond's Complaint names "all persons known and unknown" pursuant to CCP § 762.020, which is sufficient to permit him to file an answer.

Accordingly, Geisler claims that he is are entitled to all the same procedural rights and treatment as any other defendant in the action. In ruling on Hammond's demurrer and motion to strike the Answer, the Court granted Mr. Geisler leave to amend to either file a motion to intervene in the action or allege his basis for filing as a "person unknown" or a "Doe" defendant. Defendant Geisler claims that the Court's ruling in sustaining the demurrer with leave suggests that the Answer was not

frivolous.

In a reply brief filed on February 9, 2025, Plaintiff further asserts that Geisler's legal arguments lack merit, as they fail to address the substantive issue of whether he had initial standing to assert a quiet title claim. Other arguments are included in Plaintiff's reply brief that the Court considered.

Analyses

The Court focuses its analyses in this matter on the elements of Cal. Code of Civ. Proc. § 128.5, which states, in relevant part:

(a) A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay. This section also applies to judicial arbitration proceedings under Chapter 2.5 (commencing with Section 1141.10) of Title 3 of Part 3.

(b) For purposes of this section:

(1) "Actions or tactics" include, but are not limited to, the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading. The mere filing of a complaint without service thereof on an opposing party does not constitute "actions or tactics" for purposes of this section.

(2) "Frivolous" means totally and completely without merit or for the sole purpose of harassing an opposing party.

Here, Plaintiff claims that Defendant's filing and service of an Answer was done in bad faith, was frivolous, or solely intended to cause unnecessary delay. (Code Civ. Proc. §128.5(a); §128.5(b)(1).) Plaintiff's contention is premised on the theory that Geisler did not have an interest in title to the subject property and, thus, did not have standing to prosecute or defend a quiet title action. Plaintiff argues that "well-settled California law that a party must have an interest in title to the subject property to have standing to prosecute or defend a quiet title action. (Code Civ. Proc. §762.060(a); *Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 220-221 [quiet title claim is "not maintainable" against a defendant with no "adverse claims to the title of the plaintiff"]; *Orcilla v. Big Sur, Inc.* (2016) 244 Cal.App.4th 982, 1009-1010 [quiet title claim is "defective" against a defendant with "no adverse claims to title"]; *West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 802-803 [same].)

Plaintiff further asserts that his quiet title claim must be alleged against Defendant Sipos as the sole owner of the Burdened Property containing the Easement and "All Persons Unknown" claiming an interest in title to the Burdened Property adverse to the Easement. (Code Civ. Proc. §762.060(a) [plaintiff may name unknown persons claiming an interest "adverse to plaintiff's title"].) Here, Plaintiff asserts that Geisler's Answer claims no interest in title to the Burdened Property despite the requirement to do so. (Code Civ. Proc. §761.030(a)(1)). As described above, the Court in the 2017 Action has already ruled on Geisler's foundational standing deficiency in a Quiet Title claim involving the Easement. (Brodehl Decl., Exh. A.) Plaintiff contends that this Order has issue preclusive effect. (*Border Business Park, Inc.*, 142 Cal.App.4th at 1561-1566.) Plaintiff asserts that Geisler's counsel

Signorotti knows this – he represents Geisler and the other Intervenor in the 2017 Action.

In opposing this motion, Defendant contends that he has asserted a proper claim, stating that plain reading of Cal. Code of Civ. Proc § 762.020 . Indeed, Geisler filed an Answer as one of these persons as he claims an interest in the easement that Hammond is attempting to create. CCP § 762.070 provides that “[a] person named and served as an unknown defendant has the same rights as are provided by law in cases of all other defendants named and served, and the action shall proceed against unknown defendants in the same manner as against other defendants named and served, and with the same effect. Although he does not address the specific underlying issue of whether he has standing, he argues that in granting him leave to amend his Answer, the Court has found that his response was not in bad faith under Cal. Code of Civ. Proc § 128.5.

In considering the application of Section 128.5, the Court focuses primarily on whether Defendant’s actions or tactics in filing an answer, and other past actions, was “totally and completely without merit or for the sole purpose of harassing an opposing party.”

“Whether an action is frivolous is governed by an objective standard: Any reasonable attorney would agree that it is totally and completely without merit. But there must also be a showing of an improper purpose, i.e., subjective bad faith on the part of the attorney or party to be sanctioned. *In re Marriage of Reese & Guy* (1999), 73 Cal. App. 4th 1214. In *Dolan v. Buena Engineers, Inc.* (1994), 24 Cal. App. 4th 1500, 1505-1506 the court held that under CCP § 128.5 (bad faith actions or tactics that are frivolous or intended to cause delay), subjective bad faith is a prerequisite to an award of sanctions. There must be not only a showing of a meritless or frivolous action or tactic, but also a showing of bad faith in taking the action or tactic. Although the Legislature intended to broaden the power of trial courts to impose monetary sanctions for “tactics or actions not based on good faith which are frivolous or which cause unnecessary delay,” when it enacted CCP § 128.5, in 1981, it did not intend, however, to chill the valid assertion of a litigant’s rights. For this reason, sanctions should not be imposed except in the clearest of cases. *Luke v. Baldwin-United Corp.* (1985), 167 Cal. App. 3d 664, 668, which states that, “Even after defining frivolous the court cautioned, “. . . any definition must be read so as to avoid a serious chilling effect on the assertion of litigants' rights . . .” and therefore “the power to punish attorneys . . . should be used most sparingly to deter only the most egregious conduct.”

Applying the foregoing standards here, the Court is unconvinced that Plaintiff meets the objective and subjective standards which are required to establish that Defendant’s answer was filed in bad faith. Defendant claims a colorable argument in statutory interpretation that permits him to file an answer on behalf of “all persons known and unknown” pursuant to CCP § 762.020. While Defendant’s argument does not address the issue of whether Geisler had an interest in title to the subject property, which apparently he does not, the Court cannot conclude that his answer, alone, under Section 762.020 is frivolous within the meaning of Section 128.5.

Ruling

Based on the foregoing analyses, the Court finds that Defendant did not commit frivolous actions in this case. The standards for finding frivolity are defined in case law. Here, Defendant did not commit frivolous activity. As such, Plaintiff’s Motion for Sanctions and Fees is **denied** without prejudice.

Defendant's counsel is ordered to prepare a proposed order conforming to the tentative ruling, attaching the tentative ruling, no later than five (5) days from the date of this hearing.

7. 9:00 AM CASE NUMBER: C24-02203

CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY

***HEARING ON MOTION IN RE: FOR LEAVE TO AMEND SECOND AMENDED COMPLAINT TO FILE**

THIRD AMENDED COMPLAINT

FILED BY: COLEMAN, KAREN

TENTATIVE RULING:

Plaintiff Karen Coleman's Motion for Leave to File a Third Amended Complaint is **denied**. The Court sustained Defendant's Demurrer and granted Defendant's Motion to Strike the Second Amended Complaint on January 23, 2026. Plaintiff in *propria persona* filed a self-styled "Notice of Timely Filing Third Amended Complaint on February 2, 2026", which is late. Cal. Code of Civ. Proc. § 1005(b) requires service of this Motion no later than 16 court days before the hearing. Sixteen court days before February 18, 2026 is January 23, 2026. Plaintiff's filing is 10 days late.

Furthermore, Plaintiff's Motion contains several procedural irregularities. For example, Plaintiff's motion fails to comply with the Notice Requirements, did not to seek leave to amend her complaint, and fails to provide a Memorandum of Points and Authorities. Plaintiff did not file a Proof of Service form indicating that Defendants have been served. Plaintiff also does not include a proposed Copy of a Third Amended Complaint. These procedural irregularities do not provide Defendants with due process, in that there is no record that they are provided with timely notice an opportunity to be heard. As such, this Motion fails.

The Court has admonished Plaintiff that she is required to follow Court Rules and the Rules of Civil Procedure, even though she represents herself. The Court has also advised Plaintiff to seek assistance of Counsel or the resources of the law library so that she could properly prepare and serve motions in according to the rules. She has not complied with these admonitions. Unfortunately, the Court must **deny** the relief she requested by this Motion. Plaintiff's Motion is **denied**.

8. 9:00 AM CASE NUMBER: C24-02750

CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.

HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT FILED BY DEFENDANT

UNIVERSAL PROTECTION SERVICE, LP

FILED BY: UNIVERSAL PROTECTION SERVICE, LP

TENTATIVE RULING:

Before the Court is Defendant Universal Protection Service, LP's Demurrer to Plaintiffs' First Amended Complaint. Universal Protection Service, LP is doing business as Allied Universal Security Services.

Defendant Universal Protection Service, LP's Demurrer **sustained without leave to amend**, as set forth below.

Factual Allegations

This matter pertains to a fatal automobile accident that occurred in the early morning hours of